



Bill Number: H.B. 2611

Werner Floor Amendment

**Reference to: HEALTH AND HUMAN SERVICES
Committee amendment**

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

1. Requires the Department of Child Safety (DCS) to submit the results of random quarterly drug screenings of group foster home employees to the chairpersons of the Health and Human Services Committees of the Senate and House of Representatives, or their successor committees.
2. Requires DCS, rather than the Department of Health Services, to develop and implement outlined rules, policies and procedures for juvenile group homes relating to safety and technology protocols, inspections and resident privacy.
3. Establishes minimum security standard requirements for juvenile group homes.

WERNER FLOOR AMENDMENT
SENATE AMENDMENTS TO H.B. 2611
(Reference to HEALTH AND HUMAN SERVICES Committee amendment)

Amendment instruction key:

[GREEN UPPERCASE UNDERLINING IN BRACKETS] indicates that the amendment is adding text to statute or previously enacted session law.
[Green lowercase underlining in brackets] indicates that the amendment is adding text to new session law or is restoring previously stricken text to existing statute.
~~[GREEN UPPERCASE STRIKEOUT IN BRACKETS]~~ indicates that the amendment is removing new text from statute or previously enacted session law.
~~[Green lowercase strikeout in brackets]~~ indicates that the amendment is removing text from existing statute, previously enacted session law or new session law.
<<Double green carets enclosing an entire section>> indicates that the amendment is adding the section to the bill.
~~<<Green strikeout with double green carets enclosing an entire section>>~~ indicates that the amendment is removing the section to the bill.
{[ORANGE UPPERCASE UNDERLINING IN DOUBLE CURLY BRACKETS]} indicates that the amendment to an amendment is adding text to statute or previously enacted session law.
{[Orange lowercase underlining in double curly brackets]} indicates that the amendment to an amendment is adding text to new session law or is restoring previously stricken text to existing statute.
~~{[ORANGE UPPERCASE STRIKEOUT IN DOUBLE CURLY BRACKETS]}~~ indicates that the amendment to an amendment is removing new text from statute or previously enacted session law.
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<<Double orange underlined carets enclosing an entire section>> indicate that the amendment to an amendment is adding the section to the bill.
~~<<Orange strikeout with double orange underlined carets enclosing an entire section>>~~ indicates that the amendment to an amendment is removing the section from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 8-529, Arizona Revised Statutes, is amended to
3 read:

4 8-529. Children in foster care and kinship foster care;
5 rights

6 A. A child WHO IS in foster care ~~and~~ OR kinship foster care has the
7 following rights:

8 1. To appropriate care and treatment in the least restrictive
9 setting available that can meet the child's needs according to the best
10 judgment of the foster parent.

11 2. To live in a safe, healthy and comfortable placement where the
12 child can receive reasonable protection from harm and appropriate privacy
13 for personal needs and where the child is treated with respect.

14 3. To be placed with a relative when such placement is in the best
15 interest of the child.

16 4. To be placed with or in close proximity to the child's siblings
17 when possible and to visit and have contact with siblings and family

1 members when ~~if~~ THE PLACEMENT, VISITATION OR CONTACT is in the best
2 interest of the child.

3 5. To know why the child is in foster care and what will happen to
4 the child and to the child's family, including siblings, and case plans.

5 6. Whenever possible, to be placed with a foster family that can
6 accommodate the child's communication needs.

7 7. To be disciplined in a manner that is appropriate to the child's
8 level of maturity and not be subjected to physical discipline methods.

9 8. To attend community, school, extracurricular and religious
10 services and activities of the child's choice to the extent that it is
11 appropriate for the child, as planned and discussed with the child's
12 placement worker and caseworker and based on caregiver ability if
13 transportation is available through a responsible party.

14 9. To go to school and receive an education that fits the child's
15 age and individual needs. If remaining in the child's current school is
16 not in the child's best interest, the child has the right to be enrolled
17 in the least restrictive school available.

18 10. To training in personal care, hygiene and grooming.

19 11. To clothing that fits comfortably and is adequate to protect the
20 child against natural elements such as rain, snow, wind, cold and sun.

21 12. To have personal possessions at home and to acquire additional
22 possessions within reasonable limits, as planned and discussed with the
23 child's foster parent, placement worker and caseworker, and based on
24 caregiver ability.

25 13. To personal space, preferably in the child's foster home bedroom
26 for storing clothing and belongings.

27 14. To healthy foods in healthy portions that are appropriate for
28 the child's age.

29 15. To comply with any approved visitation plan, and to have any
30 restrictions explained to the child in a manner and level of details
31 deemed age appropriate by the foster parent in agreement with the
32 caseworker and documented in the child's record.

33 16. If the child is six years of age or older, to receive contact
34 information for the child's caseworker, attorney or advocate and to speak
35 with them in private if necessary.

36 17. To be represented by an attorney in all proceedings initiated
37 pursuant to this title.

38 18. To participate in age appropriate child's service planning and
39 permanency planning meetings and to be given a copy or summary of each
40 service plan and service plan review. The child may request someone to
41 participate on the child's behalf or to support the child in this
42 participation.

43 19. To attend the child's court hearing and speak to the judge.

44 20. To have the child's records and personal information kept
45 private and discussed only when it is about the child's care, except THAT
46 the foster parent shall have full access to the records to determine ~~if~~
47 WHETHER the child will be successful in the home. During the foster
48 placement, if the foster parent requests to view the record on

1 experiencing problems with the child's adjustment, the full record shall
2 be made available for viewing by the foster parent.

3 21. To receive IMMEDIATE AND UNBIASED medical, dental, vision and
4 mental health services and to be informed about diagnoses and treatment
5 options as is developmentally appropriate.

6 22. To be free of unnecessary or excessive medication.

7 23. To receive emotional, mental health or chemical dependency
8 treatment separately from adults who are receiving services, as planned
9 and discussed with the child's placement worker and caseworker, as is
10 financially reasonable for the foster parent.

11 24. To report a violation of personal rights specified in this
12 section without fear of ~~punishment~~, interference, coercion, INTIMIDATION
13 or retaliation. ~~, except that an appropriate level of punishment may be~~
14 ~~applied if the child is proven to have maliciously or wrongfully accused~~
15 ~~the foster parent.~~ A FOSTER PARENT, A KINSHIP CAREGIVER, A FOSTER HOME, A
16 GROUP FOSTER HOME, A GROUP HOME OR AN EMPLOYEE, CONTRACTOR OR AGENT OF A
17 HOME OR FACILITY WHERE A CHILD WHO IS IN THE CARE OF THE DEPARTMENT IS
18 PLACED MAY NOT TAKE, THREATEN OR CAUSE RETALIATORY ACTION AGAINST A CHILD
19 BECAUSE THAT CHILD REPORTS A SUSPECTED VIOLATION OF PERSONAL RIGHTS
20 PURSUANT TO THIS PARAGRAPH OR PARTICIPATED IN AN INQUIRY OR INVESTIGATION
21 OF A VIOLATION OF PERSONAL RIGHTS AND THE CHILD MADE THE REPORT OF A
22 VIOLATION OF PERSONAL RIGHTS OR PARTICIPATED IN AN INQUIRY OR
23 INVESTIGATION OF A VIOLATION OF PERSONAL RIGHTS IN GOOD FAITH OR WITH A
24 REASONABLE BELIEF THAT THE REPORT OF A VIOLATION OF PERSONAL RIGHTS WAS
25 TRUE. FOR THE PURPOSES OF THIS PARAGRAPH, "RETALIATORY ACTION":

26 (a) MEANS AN ACTION OR OMISSION THAT WOULD DETER A REASONABLE CHILD
27 OF SIMILAR AGE AND CIRCUMSTANCES FROM MAKING A REPORT OF A VIOLATION OF
28 PERSONAL RIGHTS PURSUANT TO THIS PARAGRAPH AND THAT MATERIALLY ADVERSELY
29 AFFECTS ANY OF THE FOLLOWING FOR A CHILD:

30 (i) PLACEMENT.

31 (ii) SERVICES.

32 (iii) EDUCATION.

33 (iv) MEDICAL OR BEHAVIORAL HEALTH CARE.

34 (v) PRIVILEGES.

35 (vi) VISITATION OR CONTACT.

36 (vii) ANY OTHER CONDITIONS OF PLACEMENT.

37 (b) INCLUDES:

38 (i) INITIATING, REQUESTING, RECOMMENDING OR CAUSING A DISRUPTION IN
39 PLACEMENT, TRANSFER OR CHANGE IN LEVEL OF CARE OR SUPERVISION, INCLUDING A
40 REFERRAL TO A HIGHER LEVEL OF CARE, WITHOUT DOCUMENTED, NONRETALIATORY
41 JUSTIFICATION.

42 (ii) DENYING, RESTRICTING, DELAYING OR CONDITIONING PRIVILEGES,
43 NORMAL ACTIVITIES, VISITATION OR CONTACT, RECREATION, PARTICIPATION IN
44 EDUCATION, SERVICES OR OPPORTUNITIES TO WHICH THE CHILD IS OTHERWISE
45 ENTITLED.

46 (iii) IMPOSING DISCIPLINARY OR CORRECTIVE ACTION OR MORE RESTRICTIVE
47 CONDITIONS NOT BASED ON CONTEMPORANEOUS DOCUMENTED CONDUCT THAT IS NOT
48 RELATED TO A REPORT OF A VIOLATION OF A CHILD'S PERSONAL RIGHTS.

1 (iv) KNOWINGLY MAKING, CAUSING OR ENCOURAGING ANOTHER PERSON TO MAKE
2 A FALSE, FRAUDULENT OR MATERIALLY MISLEADING STATEMENT, INCIDENT REPORT,
3 ALLEGATION OR RECORD ABOUT THE CHILD TO RELEVANT AUTHORITIES.

4 (v) ALTERING, DESTROYING OR CONCEALING RECORDS OR EVIDENCE THAT IS
5 RELATED TO A REPORT OF A VIOLATION OF A CHILD'S PERSONAL RIGHTS.

6 25. To be informed in writing of the name, address, telephone number
7 and purpose of the Arizona protection and advocacy system for disability
8 assistance.

9 26. TO VOLUNTARILY PARTICIPATE IN ENRICHMENT ACTIVITIES.

10 27. TO BE FREE OF BULLYING OR DISCRIMINATION.

11 ~~26.~~ 28. To understand and have a copy of the rights listed in this
12 section.

13 B. A child WHO IS in foster care or kinship foster care AND who is
14 at least fourteen years of age has the following rights:

15 1. To attend preparation for adult living classes and activities as
16 appropriate to the child's case plan, as is financially reasonable for the
17 foster parent.

18 2. To a transition plan that includes career planning and
19 assistance with enrolling in an educational or vocational job training
20 program.

21 3. To be informed of educational opportunities, including
22 information regarding assistance and funding for postsecondary and
23 vocational education.

24 4. To assistance in obtaining an independent residency when the
25 child is too old to remain in foster care from the child's caseworker,
26 attorney or advocate.

27 5. To request a court hearing for a court to determine ~~if~~ WHETHER
28 the child has the capacity to consent to medical care that is directly
29 related to an illness, disease, deformity or other physical malady.

30 6. To receive help with obtaining a driver license, social security
31 number, birth certificate or state identification card and credit reports
32 with assistance in interpreting the reports and resolving inaccuracies in
33 the report. The foster parent shall have discretion to determine ~~if~~
34 WHETHER the child is responsible and mature enough to become a licensed
35 driver.

36 7. To receive necessary personal information within thirty days
37 after leaving foster care, including the child's birth certificate,
38 immunization records and information contained in the child's education
39 portfolio and health passport.

40 8. To participate in or reenter extended foster care when the child
41 is at least eighteen and under twenty-one years of age pursuant to section
42 8-521.02.

43 C. The department shall provide information regarding a child's
44 rights pursuant to this section and assistance in understanding and
45 enforcing these rights to each child who enters foster care or kinship
46 foster care or when there is a change in the child's foster care plan.
47 The information shall also include the telephone number and email address
48 of the department, the child's assigned case manager, the department's
49 office of the ombudsman and the ombudsman-citizens aide. A copy of these

1 rights shall be posted in a conspicuous place in all foster ~~care~~ HOMES and
2 group FOSTER homes.

3 D. If a child who is in foster care or kinship foster care believes
4 that the child's rights under this section have been violated, the child
5 or the child's representative may:

6 1. File a complaint with the department, the department's office of
7 the ombudsman or the ombudsman-citizens aide pursuant to section 41-1376.
8 A formal grievance may be initiated with the ombudsman at any time.

9 2. Notify the juvenile court in the child's ongoing dependency,
10 severance or adoption proceeding, either orally or in writing, that the
11 child's rights are being violated and request appropriate equitable
12 relief. The court shall act on the notification as necessary within ~~its~~
13 THE COURT'S discretion to promote the best interest of the child.

14 E. The rights provided in this section do not establish an
15 independent cause of action.

16 Sec. 2. Section 8-530.06, Arizona Revised Statutes, is amended to
17 read:

18 8-530.06. Group foster homes; employees; random drug
19 screening; reporting of results; confirmation;
20 employee termination

21 A. The department shall develop and implement policies and
22 procedures to conduct random quarterly drug screening of employees of a
23 group foster home. The drug screening policies and procedures shall
24 comply with title 23, chapter 2, article 14. A GROUP FOSTER HOME SHALL
25 SUBMIT TO THE DEPARTMENT VERIFICATION OF THE COMPLETION OF THE RANDOM
26 QUARTERLY DRUG SCREENING THAT IS CONDUCTED PURSUANT TO THIS SUBSECTION AND
27 THE RESULTS OF THE SCREENINGS. THE DEPARTMENT SHALL REPORT ALL RESULTS{~~;~~
28 ~~INCLUDING THE~~} {{TO THE CHAIRPERSONS OF THE SENATE AND HOUSE OF
29 REPRESENTATIVES HEALTH AND HUMAN SERVICES COMMITTEES, OR THEIR SUCCESSOR
30 COMMITTEES. THE REPORT MUST INCLUDE THE}} FOLLOWING:

31 1. POSITIVE RESULTS.
32 2. NEGATIVE RESULTS.
33 3. THE REFUSAL OF AN EMPLOYEE TO SUBMIT TO A RANDOM DRUG SCREENING.
34 4. ANY INCIDENT OF TAMPERING WITH A DRUG SCREENING SPECIMEN OR
35 RESULT.

36 B. An employee of a group foster home may not have contact with any
37 child living at the group foster home before an initial drug screening.

38 C. The department ~~may~~ SHALL conduct ~~random~~ drug screening of any
39 group foster home employee if the employee is involved in an accident or
40 incident in which a child ~~that~~ WHO lives at the group foster home is
41 injured. A group foster home shall submit the results of all ~~random~~ drug
42 screening THAT IS REQUIRED BY THIS SUBSECTION to the department within
43 forty-eight hours after receiving the drug screening results. A GROUP
44 FOSTER HOME SHALL REPORT A POSITIVE DRUG SCREENING RESULT, AN EMPLOYEE'S
45 REFUSAL TO SUBMIT TO A DRUG SCREENING OR THE TAMPERING WITH A DRUG
46 SCREENING SPECIMEN OR RESULT TO THE DEPARTMENT WITHIN FORTY-EIGHT HOURS
47 AFTER RECEIVING THE POSITIVE RESULT OR AFTER THE REFUSAL OR INCIDENT OF
48 TAMPERING.

1 D. ON RECEIVING AN EMPLOYEE'S POSITIVE DRUG SCREENING RESULT OR
2 NONNEGATIVE DRUG SCREENING RESULT, ON AN EMPLOYEE'S REFUSAL TO SUBMIT TO A
3 DRUG SCREENING OR ON AN INCIDENT OF TAMPERING WITH A DRUG SCREENING
4 SPECIMEN OR DRUG SCREENING RESULT, A GROUP FOSTER HOME SHALL IMMEDIATELY
5 REMOVE THAT EMPLOYEE FROM ALL CONTACT WITH ANY CHILD WHO IS A RESIDENT AT
6 THE GROUP FOSTER HOME UNTIL ADDITIONAL CONFIRMATORY DRUG SCREENING AND
7 REVIEW OF THE ADDITIONAL CONFIRMATORY DRUG SCREENING BY A MEDICAL
8 PROFESSIONAL OCCURS. IF THE CONFIRMATORY TESTING RESULTS IN A POSITIVE
9 RESULT FOR THE PRESENCE OF AN ILLEGAL OR UNAUTHORIZED SUBSTANCE, THE GROUP
10 FOSTER HOME SHALL TERMINATE THE EMPLOYEE FROM EMPLOYMENT WITH THE GROUP
11 FOSTER HOME.

12 Sec. 3. Section 8-530.08, Arizona Revised Statutes, is amended to
13 read:

14 8-530.08. Congregate care; assessment; plans; definitions

15 A. Within thirty days after placing a child in a congregate care
16 setting, the department shall do the following:

17 1. Work with the child, if developmentally appropriate, the child's
18 attorney and the child's family and service team to do both of the
19 following:

20 (a) Establish a plan to place ~~a~~ THE child in an appropriate
21 family-like setting. The plan shall be specific to the child and, if
22 applicable, the child's siblings and the child's minor parent or parents.
23 The plan shall include steps to identify and recruit an appropriate
24 family-like setting for the child. In developing the plan, the department
25 shall identify and consider the placement preferences of the child.

26 (b) As part of the plan established pursuant to subdivision (a) of
27 this paragraph, develop a child-specific congregate care implementation
28 plan to ensure that the child's needs are appropriately met while the
29 child is placed in a congregate care setting.

30 2. Conduct an on-site visit of a group home within forty-eight
31 hours after placing a medically complex child in a group home to ensure
32 that all staff members who will have contact or care responsibilities for
33 a medically complex child have proper training.

34 3. Document both of the following in the child's case plan:

35 (a) The plan for placement of ~~a~~ THE child in an appropriate
36 family-like setting and the child-specific congregate care implementation
37 plan pursuant to paragraph 1, ~~subdivisions (a) and (b)~~ of this subsection.

38 (b) The results and findings of the group home on-site ~~survey~~
39 VISIT, if applicable, pursuant to paragraph 2 of this subsection.

40 B. For the purpose of this section:

41 1. "Family and service team" includes any of the following:

42 (a) Coaches.

43 (b) Court appointed special advocates.

44 (c) Department employees.

45 (d) Former foster caregivers.

46 (e) Mentors.

47 (f) Teachers.

48 (g) A DESIGNATED ADVOCATE.

49 ~~(g)~~ (h) Any other individuals who have knowledge of the child.

1 2. "Medically complex child" means a child who the department has
2 determined has or is at risk for a chronic physical or developmental
3 condition and who requires health-related services beyond the
4 health-related services that are required by a child in general.

5 Sec. 4. Title 8, chapter 4, article 4, Arizona Revised Statutes, is
6 amended by adding section 8-530.10, to read:

7 8-530.10. Group foster homes; resident safety; employee
8 screening; rules; policies; procedures

9 THE DEPARTMENT SHALL DEVELOP AND IMPLEMENT RULES, POLICIES AND
10 PROCEDURES IN GROUP FOSTER HOMES THAT DO ALL OF THE FOLLOWING:

11 1. REQUIRE COMPREHENSIVE BACKGROUND CHECKS THAT INCLUDE A COMPLETE
12 CRIMINAL HISTORY CHECK, SUBSTANCE USE SCREENING AND VERIFICATION OF
13 REFERENCES FOR ALL GROUP FOSTER HOME EMPLOYEES.

14 2. REQUIRE MANDATORY TRAINING IN TRAUMA-INFORMED CARE, MENTAL
15 HEALTH CRISIS MANAGEMENT AND FIRST AID FOR ALL GROUP FOSTER HOME
16 EMPLOYEES.

17 3. PROHIBIT GROUP FOSTER HOME EMPLOYEES FROM USING PERSONAL CELL
18 PHONES WHILE THE EMPLOYEE IS AT THE GROUP FOSTER HOME.

19 4. ESTABLISH MECHANISMS FOR REPORTING STAFF MISCONDUCT OR NEGLECT.

20 5. REQUIRE THE GROUP FOSTER HOME TO DOCUMENT AND VERIFY THAT A
21 CHILD WHO IS LIVING IN A GROUP FOSTER HOME ATTENDS MEDICAL AND MENTAL
22 HEALTH CARE APPOINTMENTS.

23 6. ESTABLISH REPORTING AND FOLLOW-UP POLICIES TO PREVENT MEDICAL
24 NEGLECT AND ENSURE THE CONTINUITY OF CARE FOR A CHILD WHO IS LIVING IN A
25 GROUP FOSTER HOME.

26 {{7. REQUIRE MINIMUM SECURITY STANDARDS THAT INCLUDE ALL OF THE
27 FOLLOWING:

28 (a) SECURE ENTRY AND EXIT POINTS THAT PREVENT UNAUTHORIZED ACCESS.

29 (b) FUNCTIONAL LOCKING MECHANISMS ON ALL EXTERIOR DOORS AND WINDOWS
30 THAT ARE MAINTAINED IN WORKING ORDER AT ALL TIMES.

31 (c) MONITORING OF COMMON AREAS, INCLUDING VIDEO SURVEILLANCE OR
32 STAFF SUPERVISION.

33 8. ESTABLISH TRAUMA-INFORMED SAFETY PROTOCOLS THAT PREVENT GROOMING
34 AND EXPLOITATION OF AND UNAUTHORIZED EXITS BY THE RESIDENTS.

35 9. ALLOW UNANNOUNCED INSPECTIONS AND INDEPENDENT AUDITS BY THE
36 DEPARTMENT.

37 10. ESTABLISH TECHNOLOGY POLICIES THAT LIMIT OR MONITOR TELEPHONE
38 USE BY RESIDENTS AND THAT PROVIDE APPROPRIATE SECURITY THROUGH THE USE OF
39 APPLICATIONS AND TECHNOLOGY.

40 11. PROHIBIT GROUP FOSTER HOME EMPLOYEES FROM SHARING RESIDENTS'
41 PERSONAL INFORMATION OR SCHEDULES.}}

42 ~~Sec. 5. Title 36, chapter 10, article 1, Arizona Revised~~
43 ~~Statutes, is amended by adding section 36-1202, to read:~~

44 ~~36-1202. Juvenile group homes; resident safety; policies;~~
45 ~~rules; procedures; definitions~~

46 ~~A. THE DEPARTMENT [OF HEALTH SERVICES] SHALL DEVELOP AND IMPLEMENT~~
47 ~~RULES, POLICIES AND PROCEDURES FOR GROUP HOMES THAT DO ALL OF THE~~
48 ~~FOLLOWING:~~

1 ~~1. REQUIRE MINIMUM SECURITY STANDARDS FOR GROUP HOMES THAT INCLUDE~~
2 ~~ALL OF THE FOLLOWING:~~
3 ~~(a) SECURE ENTRY AND EXIT.~~
4 ~~(b) FUNCTIONAL LOCKS.~~
5 ~~(c) MONITORED COMMON AREAS.~~
6 ~~2. ESTABLISH TRAUMA-INFORMED SAFETY PROTOCOLS THAT PREVENT GROOMING~~
7 ~~AND EXPLOITATION OF AND UNAUTHORIZED EXITS BY THE RESIDENTS.~~
8 ~~3. ALLOW UNANNOUNCED INSPECTIONS AND INDEPENDENT AUDITS BY THE~~
9 ~~GROUP HOME'S LICENSING AUTHORITY.~~
10 ~~4. ESTABLISH TECHNOLOGY POLICIES THAT LIMIT OR MONITOR TELEPHONE~~
11 ~~USE BY RESIDENTS AND THAT PROVIDE APPROPRIATE SECURITY THROUGH THE USE OF~~
12 ~~APPLICATIONS AND TECHNOLOGY.~~
13 ~~5. PROHIBIT GROUP HOME EMPLOYEES FROM SHARING [RESIDENTS]~~
14 ~~[RESIDENTS'] PERSONAL INFORMATION OR SCHEDULES.~~
15 ~~B. FOR THE PURPOSES OF THIS SECTION, "GROUP HOME", "LICENSING~~
16 ~~AUTHORITY" AND "RESIDENT" HAVE THE SAME MEANINGS PRESCRIBED IN SECTION~~
17 ~~[32-1201] [36-1201].>>~~
18 Sec. 5. Short title
19 This act may be cited as the "Youth Safety, Rights and Mental Health
20 Protection Act".

21 Enroll and engross to conform
22 Amend title to conform

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